2025 M L D 1294

[Lahore]

Before Muhammad Sajid Mehmood Sethi, J

Malik MUHAMMAD ANWAR---Petitioner

Versus

CHAND BIBI (deceased) through Legal Heirs and others---Respondents

Civil Revision No. 2519 of 2023, heard on 8th April, 2025.

(a) Specific Relief Act (I of 1877) ---

----Ss.42 & 54 --- Qanun-e-Shahdat (10 of 1984), Art.117 --- Civil Procedure Code (V of 1908), S.115 & O.VI, R.4 --- Suit for declaration along with possession through partition ---Claiming inheritance right in suit property --- Inheritance and succession matters --- Lineage/successive chain of relationship with original owner, proof of --- Scope --- Legatee must prove heirship as well as complete chain of hereditary relationship with original owner --- The petitioner along with respondents Nos. 30 to 32, filed a suit for declaration, along with possession through partition, and permanent as well as mandatory injunction claiming inheritance rights in the suit property --- Through the said suit, registered sale deeds in favour of respondents Nos. 26 to 28 were challenged as fraudulent --- Suit was dismissed and appeal also met the same fate ---Held: Petitioner failed to substantiate his basic claim of being a legal heir of the deceased--- Similarly, he was unable to provide credible evidence to establish the complete chain of hereditary relationship with the original owner --- Courts below could now proceed on mere unsubstantiated assertions without corroborative evidence, particularly in matters related to inheritance and succession where clear proof of lineage was essential for establishing rightful claims --- Moreover, no credible documentary evidence was produced by the petitioner to establish original owner's ownership over the suit property --- Moreover, no serious effort was made by the petitioner to prove any illegality in the registered sale deeds --- Besides all of the above, during cross-examination, the petitioner admitted that the sellers had transferred their shares through registered sale deeds in favour of respondents Nos. 26 to 28 --- He also acknowledged that the property described in the said sale deeds was distinct from the suit property and the disputed construction work was made by the respondents/defendants without any objection or resistance from anyone ---No cogent explanation or legal justification for the prolonged silence and inaction on the part of the petitioner was provided --- Even otherwise, the principles of acquiescence and waiver were applicable to bar him from obtaining any relief, as his inaction and implicit acceptance of the respondents' activities had effectively extinguished any remedies that might otherwise would have been available --- Unsubstantiated claims presented in pleadings hold no weight unless those are reinforced by compelling evidentiary support --- Revision petition, being devoid of any merits, was dismissed in limine.

Bashir Ahmed through Legal Representative and others v. Muhammad Hussain and others PLD 2019 SC 504; Jubilee General Insurance Co. Ltd., Karachi v. Ravi Steel Company, Lahore PLD 2020 SC 324; Taj Wali Khan v. Hukam Khan (decd.) through L.Rs. 2025 SCMR 231 and Muhammad Hanif Qureshi v. Muhammad Ayub and another 2024 CLC 1838 rel.

Mariyappa K.S. v. K.T. Siddalinga Setty 1989(1) KantLJ 150 = 1989 CivCC 183; S. Kaliyammal v. K. Palaniammal 1999 AIR (Madras) 40; Kisan Ramji Khandare v. Kausalyabai Gangaram 2007(3) BCR 118 and Cambridge Solutions Ltd., Bangalore v. Global Software Ltd. 2009 AIR (Madras) 74 ref

(b) Civil Procedure Code (V of 1908) ---

----O.VI, R.4 --- Fraud, allegation of --- Essential particulars --- When a party alleges fraud, it must provide specific particulars detailing the nature and manner in which it was practiced, enabling the opposing party to prepare an adequate defense --- General allegations without specific details do not constitute a proper plea of fraud --- Essential particulars, including when, how, by whom, in what manner, and for what purpose the fraud was committed, as well as who colluded with whom and for what objective, must be clearly averred.

(c) Civil Procedure Code (V of 1908) ---

----S.115 --- Revisional jurisdiction of the High Court ---Scope---Concurrent findings of courts below --- High Court's revisional authority under S.115 of the Code of Civil Procedure 1908, exists to ensure proper judicial oversight and correction, unimpeded by procedural formalities ---Such power is limited to addressing substantive errors such as misinterpretation of evidence, jurisdictional overreach, or significant legal flaws that materially affect merits of the case or result in conclusions that contradict established legal principles --- Revisional powers cannot be used to interfere in the concurrent findings of the trial and appellate courts merely because of the reason that another view of the evidence could also be possible ---Even if the findings of the courts below are erroneous, the High Court, in exercise of its revisional powers, cannot interfere unless such findings suffer from a jurisdictional defect, illegality, or material irregularity affecting the merits of the case.

Khudadad v. Syed Ghazanfar Ali Shah alias S. Inaam Hussain and others 2022 SCMR 933; Mst. Zarsheda v. Nobat Khan PLD 2022 SC 21; Government of Khyber Pakhtunkhwa through Secretary Elementary and Secondary Education, Peshawar and others v. Latif Ullah Khan 2021 SCMR 829; Abdul Khaliq (Deceased) through L.Rs. v. Ch. Rehmat Ali (Deceased) through L.Rs. and others 2012 SCMR 508; Ahmad Nawaz Khan v. Muhammad Jaffar Khan and others 2010 SCMR 984; Mst. Farzana Zia and others v. Mst. Saadia Andaleeb and others 2024 SCMR 916; Mst. Zarsheda v. Nobat Khan PLD 2022 SC 21; Abdul Aziz v. Sheikh Fateh Muhammad 2007 SCMR 336; Mst. Zaitoon Begum v. Nazar Hussain and another 2014 SCMR 1469; Hakim-ud-Din through L.Rs. and others v. Faiz Bakhsh and others 2007 SCMR 870; Rashid Ahmad v. Said Ahmad 2007 SCMR 926 and Muhammad Feroze and others v. Muhammad Jamaat Ali 2006 SCMR 1304 rel.

Malik Falaksher through LRs v. Muhammad Baran and another 2024 YLR 2578; Imtiaz Ali v. Muhammad Sadiq 2023 MLD 1819; Muhammad Khan v. Muhammad Aslam through Legal Heirs and 7 others 2008 CLC 1055 and The Chairman, Wapda and 4 others v. Messrs Sitara Marbles Industry through Managing Director 2016 YLR 205 ref.

Syed Salman Haider Jafri for Petitioner.

Muhammad Saad Bin Ghazi and Ch. Fiza Ullah, Assistant Advocates General on Court's call for Respondents.

Date of hearing: 8th April, 2025.

JUDGMENT

MUHAMMAD SAJID MEHMOOD SETHI, J.---Through instant revision petition, petitioner has challenged judgments and decrees dated 28.03.2022 and 03.10.2022, passed by learned Civil Judge and Additional District Judge, Sialkot, respectively, whereby petitioner's suit for declaration along with possession through partition and permanent as well as mandatory injunction was concurrently dismissed.

2. Briefly stated, the petitioner, along with respondents Nos.30 to 32, instituted the aforementioned suit, which was contested by respondents Nos. 27 to 29 through a written statement. The learned Trial Court, after framing issues, recording evidence, and hearing arguments from both sides, dismissed the suit through judgment and decree dated 28.03.2022. Aggrieved by the said decision, the petitioner filed an appeal before the learned Additional District Judge, which was also dismissed vide judgment and decree dated 03.10.2022. Hence, the present revision petition.

3. The petitioner, along with respondents Nos. 30 to 32, asserted in the plaint that the suit property was originally owned by Arora, son of Dilbahar, who passed away in the year 1955. Upon his death, his estate was inherited by his three sons-Muhammad Yousaf, Muhammad Bashir, and Muhammad Aslam-who collectively received a 6/8 share, while his two daughters-Taj Begum and Pukhraj Begum-received the remaining 2/8 share. After the death of Taj Begum, her share devolved upon her aforementioned brothers and sister. Accordingly, the inheritance of both Arora and Taj Begum was distributed among their legal heirs, with Muhammad Yousaf, Muhammad Bashir, and Muhammad Aslam receiving a 6/7 share, and Pukhraj Begum entitled to a 1/7 share of the legacy. Upon the subsequent deaths of Arora's sons, the respondents Nos. 1 to 24, being their legal heirs, inherited their respective shares. Following the death of Pukhraj Begum, her share was transferred to the petitioner along with the respondents Nos. 30 to 32. Consequently, the petitioner, along with the respondents Nos.30 to 32, are entitled to separate possession of their 1/7 share in the suit property. It was further alleged that the registered sale deeds Nos.1045 and 1046, dated 16.02.1994 (Exh.D2 and Exh.D3), purportedly executed in favour of respondents Nos. 26 to 28, were obtained through fraud and were false, frivolous, and void, and therefore inoperative upon the rights of the plaintiffs.

4. The record clearly reflects that the petitioner has failed to substantiate his basic claim of being a legal heir of Mst. Pukhraj Begum. Similarly, he has been unable to provide credible evidence to establish that Mst. Pukhraj Begum was indeed the daughter of deceased Arora. Meaning thereby the petitioner's assertions regarding said relationships have remained unsupported by any evidence. Indubitably, the Court cannot proceed on mere unsubstantiated assertions without corroborative evidence, particularly in matters related to inheritance and succession where clear proof of lineage is essential for establishing rightful claims. Moreover, no credible documentary evidence has been produced by the petitioner to establish Arora's ownership over the suit property. Similarly, no serious effort has been made by the petitioner to prove any illegality in the registered sale deeds (Exh.D2 and Exh.D3). Besides all of the above, during cross-examination, the petitioner/PW-1 admitted that the sellers had transferred their shares through registered sale deeds, Exh.D2 and Exh.D3, in favour of respondents Nos. 26 to 28. He also acknowledged that the property described in the said sale deeds was distinct from the suit property and the disputed construction work was made by the respondents/defendants without any objection or resistance from anyone. When confronted with these critical admissions, the learned counsel for the petitioner failed to provide any cogent explanation or legal justification for this prolonged silence and inaction on the part of the petitioner. Even otherwise, the principles of acquiescence and waiver would also operate to bar him from obtaining any relief, as his inaction and implicit acceptance of the respondents' activities have effectively extinguished any remedies that might otherwise have been available.

5. Needless to say, when a party alleges fraud, it must provide specific particulars detailing the nature and manner in which it was practiced, enabling the opposing party to prepare an adequate defense. General allegations without specific details do not constitute a proper plea of fraud. Essential particulars-including when, how, by whom, in what manner, and for what purpose the fraud was committed, as well as who colluded with whom and for what objective-must be clearly averred. In this case, the petitioner neither properly pleaded these allegations in the plaint nor established them through evidence. Similarly, the petitioner failed to demonstrate any malice by the respondents in executing the registered sale deeds (Exh.D2 and Exh.D3). It is reiterated that unsubstantiated claims presented in pleadings hold no weight unless those are reinforced by compelling evidentiary support. Reliance is placed upon Bashir Ahmed through Legal Representative and others v. Muhammad Hussain and others (PLD 2019 SC 504), Jubilee General Insurance Co. Ltd., Karachi v. Ravi Steel Company, Lahore (PLD 2020 SC 324), Taj Wali Khan v. Hukam Khan (decd.) through L.Rs. (2025 SCMR 231) and Muhammad Hanif Qureshi v. Muhammad Ayub and another (2024 CLC 1838).

Reference can also be made to Indian judgments reported as Mariyappa K.S. v. K.T. Siddalinga Setty [1989(1) KantLJ 150 = 1989 CivCC 183], S. Kaliyammal v. K. Palaniammal [1999 AIR (Madras) 40], Kisan Ramji Khandare v. Kausalyabai Gangaram [2007(3) BCR 118], Cambridge Solutions Ltd., Bangalore v. Global Software Ltd. [2009 AIR (Madras) 74].

6. It has been consistently held by the superior Courts that High Court's revisional authority under Section 115 of the Code of Civil Procedure 1908, exists to ensure proper judicial oversight and correction, unimpeded by procedural formalities. This power is limited to addressing substantive errors such as misinterpretation of evidence, jurisdictional overreach, or significant legal flaws that materially affect merits of the case or result in conclusions that contradict established legal principles. Revisional powers cannot be used to interfere in the concurrent findings of the Trial and Appellate Courts merely because of the reason that another view of the evidence could also be possible. The law is also well-settled that even if the findings of the Courts below are erroneous, the High Court, in exercise of its revisional powers, cannot interfere unless such findings suffer from a jurisdictional defect, illegality, or material irregularity affecting the merits of the case.

7. Learned counsel for petitioner has remained unable to point out any illegality, material irregularity or jurisdictional defect in the concurrent decisions of learned Courts below, which are based on correct appreciation of law, facts and evidence brought on record; hence, no interference in exercise of revisional jurisdiction, is warranted.

8. Resultantly, instant revision petition, being devoid of any merits, is dismissed in limine. No order as to costs.

UN/M-74/L Revision dismissed.

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